

ORIGINAL

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

FILED

2024-TS-839

v.

JAN 21 2025

CAUSE NO. L21-494

STATE OF MISSISSIPPI

OFFICE OF THE CLERK
SUPREME COURT
COURT OF APPEALS

ORDER DENYING MOTION FOR APPOINTMENT OF COUNSEL

THIS CAUSE is before the Court on a *Motion for Appointment of Counsel* filed by Matthew Reardon, in which he asks the Court to appoint appellate counsel with the Indigent Appeals Division of the Office of the State Public Defender. After thorough consideration, the Court finds as follows:

I.

This Court entered an Order [Doc. 18] dismissing this matter, which Mr. Reardon has appealed to the Mississippi Supreme Court. Mr. Reardon submitted a *Motion for Appointment of Counsel* seeking representation through the Indigent Appeals Division of the Office of the State Public Defender.

In support of his Motion, Mr. Reardon relies on Mississippi Rule of Appellate Procedure 6(b), Mississippi Rule of Appellate Procedure 6(c)(1), and Miss. Code Ann. § 99-40-1.

II.

Mr. Reardon attempts to rely upon M.R.A.P. 6(b) while overlooking a relevant provision, which provides: "[a]ppointed trial counsel shall continue as defendant's counsel on appeal unless relieved by order of the trial court, or, if the appeal has been perfected, by order of the Supreme

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Court or the Court of Appeals." (emphasis added). Mr. Reardon was appointed counsel after attempting to appeal his case from the Justice Court of Lafayette County to the Circuit Court of Lafayette County. In its Order dismissing the matter [Doc. 18], the Court relieved trial counsel of further duties -- well before an appeal was perfected.

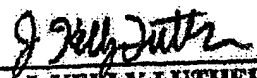
Mr. Reardon further argues that "the trial court shall, except for good cause shown, appoint the Indigent Appeals Division of the Office of the State Public Defender to represent the Appellant on appeal..." relying on M.R.A.P. 6(c)(1). However, this requirement is predicated on the Court's initial determination that the appellant is entitled to the appointment of counsel on appeal. Mr. Reardon is not entitled to representation pursuant to Miss. Code Ann. § 99-40-1. The Indigent Appeals Division within the Office of the State Public Defender "shall provide representation on appeal for indigent persons convicted of felonies..." Miss. Code Ann. § 99-40-1(2). Mr. Reardon was not charged with or convicted of felony crimes in the matter he initially sought to appeal. Nor was he sentenced to serve any time in jail.

III.

The Court finds that Mr. Reardon is not entitled to further court-appointed representation in this matter. Therefore, the Court, in its discretion, finds that Mr. Reardon's *Motion for Appointment of Counsel* is not well-taken and hereby DENIED.

The Clerk of the Court is directed to provide a copy of this Order to all parties.

SO ORDERED AND ADJUDGED, this the 17th day of September, 2024.


J. KELLY LUTHER
CIRCUIT COURT JUDGE